DECISION ON THE REPORT OF THE IMPLEMENTATION OF THE AFRICAN CONTINENTAL FREE TRADE AREA (AfCFTA) SECRETARIAT

The Executive Council,

1. **RECALLS** Decision Assembly AU/Dec. 813(XXXV) of February 2022 and Ext/Assembly/AU/Draft/Dec.2(XVII) of November 2022 on the theme of the year for 2023 as "Acceleration of AfCFTA Implementation" and EMPHASISES on the role of all of the AU bodies, Member States, strategic plan in ensuring a coordinated celebration of the Theme of the Year.

2. **ALSO RECALLS** paragraph 28 of Decision EX.CL/Dec.1126(XXXIX) of October 2021 which urged the Commission "…to include a provisional budget line for the Theme of the Year in each annual budget" authorize the PRC through its relevant subcommittees to approve an additional budget for the implementation of the Theme of the year 2023;

3. **TAKES NOTE** of the Report and the recommendation therein of the AfCFTA Secretariat on the implementation of the AfCFTA and ongoing activities.

4. **CONGRATULATES** Mozambique for having ratifies the Agreement Establishing the AfCFTA through its domestic legislative processes, and **INVITES** Mozambique and Comoros to take the additional step of depositing their instruments of ratification of the Agreement with the Chairperson of the African Union Commission.

5. **CALLS UPON** the remaining non-State Parties, namely Benin; Botswana; Libya; Liberia; Madagascar; Somalia; Sudan; and South Sudan, which have not yet ratified the Agreement to do so as soon as possible and qualify as State Parties, in order to increase the size of the market and the volume of trade under the AfCFTA.

6. **ALSO CALLS UPON** for a coordinated effort in the implementation of the AfCFTA at the national level, including through the AfCFTA Guided Trade, the AfCFTA National Coordination Offices and other regional and sub-regional projects.

7. **RECOMMENDS** to the Assembly of Heads of State & Government the adoption of the two legally scrubbed protocols on Investment and Competition.

8. **REQUESTS** the Regional Economic Communities (RECs), African Development Bank (AfDB), the African Export Import Bank (Afreximbank) and the other African Union Cooperating Partners to support the fast tracking of the AfCFTA implementation.

9. **FURTHER REQUESTS** the AfCFTA Secretariat to continue monitoring the implementation of the AfCFTA and present a progress report to the 43rd Ordinary Session of the Executive Council.

10. **DESIROUS** to achieve a gender, regional and language balance between the Secretary-General and the Deputy Secretary-General, **APPROVES** the recommendation to appoint the Deputy Secretary-General on a four-year renewable fixed term contract for one time, based on competitive recruitment.

11. **RECOMMENDS** to the Assembly to launch the Theme of the year 2023 during the 36th Ordinary Session of the Assembly of the African Union and **REQUESTS** the Commission to report back on the matter to the 5th Mid-Year Coordination Meeting.